

26STCV14656 26STCV14656

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-13

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Case Number: 26STCV14656 Hearing Date: August 13, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

13, 2026 TRIAL DATE: Not set

CASE: Mobilitas

Insurance Company v. Maritza Valero

CASE NO.: 26STCV14656

MOBILITAS

INSURANCE COMPANY'S MOTION TO STAY ARBITRATION

MOVING PARTY: Plaintiff

Mobilitas Insurance Company

RESPONDING PARTY: Defendant

Maritza Valero

I. INTRODUCTION

On May 7, 2026, Plaintiff,

Mobilitas Insurance Company, filed a petition for assignment of miscellaneous court number.

On May 8, 2026, Plaintiff filed this

motion to stay arbitration proceedings.

On August 4, 2026, Plaintiff filed
a reply.[1]

II LEGAL STANDARD

“If the
court determines that a party to the arbitration is also a party to litigation
in a pending court action or special proceeding with a third party as set forth
under subdivision (c), the court . . . (4) may stay arbitration pending the
outcome of the court action or special proceeding.” (Code Civ. Proc., § 1281.2(d)(4).)

“Once a dispute is submitted to
arbitration, the [California Arbitration Act] contemplates only limited, if
any, judicial involvement.” (Briggs v. Resolution Remedies (2008)
168 Cal.App.4th 1395, 1400.) “An
arbitration has a life of its own outside the judicial system. The trial court may not step into a case
submitted to arbitration and tell the arbitrator what to do and when to do it
....” (Id. at p. 1401
[citing Titan/Value Equities Group,
Inc. v. Superior Court (1994) 29 Cal.App.4th 482, 489].)

III. DISCUSSION

Plaintiff seeks a stay of
arbitration proceedings pursuant to Insurance Code section 11580.2. Plaintiff argues relief is proper because
there is a pending insurance claim with Occupational Accident Insurance which
directly impacts the economic recovery analysis in the UIM arbitration.

Here, the court does not have
jurisdiction to grant the relief Plaintiff seeks. Insurance Code section 11580.2 grants the superior
court exclusive jurisdiction to hear discovery matters
in UIM arbitrations while Code of Civil Procedure section 1281.2
allows for consolidation. (Miranda v.
21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 920-921; Mercury Ins. Group v. Superior Court (1998)
19 Cal.4th 332, 346.) Insurance Code section 11580.2 does not confer such
jurisdiction to stay a pending arbitration while there is a pending insurance
claim. (Briggs, supra, 168

Cal.App.4th at pp. 1400-1401.)

IV. CONCLUSION

For
the foregoing reasons, the motion to stay arbitration is DENIED.

Moving party is ordered to give
notice, unless waived.

Dated: August 13, 2026

Brock
T. Hammond

Judge of the Superior Court

[1]

According to Plaintiff's reply, Defendant served an opposition. That opposition is not filed with the court. Notwithstanding Defendant's failure to file an opposition, the court denies the motion for the reasons stated herein.